JENA MINES (PRIVATE) LIMITED
versus
FRANCIS ZAMBUKO

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE, 10 July & 3 August 2026

Opposed Application

S Zingano, for the applicant
Respondent in person

DEMBURE J:

INTRODUCTION

[1] This is a court application for a decree of perpetual silence against the respondent. The application is opposed. The parties appeared before me on 10 July 2026 and argued the matter. I thereafter reserved my judgment *sine die*. The applicant seeks the following relief:

> "**IT IS ORDERED THAT:**
> 1. The application for a decree of perpetual silence against the Respondent be and is hereby granted.
> 2. Respondent be and is hereby interdicted from instituting any court proceedings against the Applicant pertaining to the matter of purported unlawful dismissal from his employment with Applicant arising out of the arbitral awards handed down by the Labour Officer, Mr Mabika and connected with Labour Court Case Numbers LRA/01/2021 and LCMD/94/2021.
> 3. Respondent be and is hereby ordered to pay costs of the application.
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> Alternatively,
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> 1. Respondent be and is hereby interdicted from instituting any court proceedings against the Applicant pertaining to the matter of purported unlawful dismissal from his employment with Applicant arising out of the arbitral awards handed down by the erstwhile Labour Officer, Mr Mabika and connected with Labour Court Case Numbers LRA/01/2021 and LC/MD/94/21 without leave of this Honourable Court first being applied for and obtained.
> 2. The Respondent be and is hereby interdicted and restrained from setting down any matter already filed or commenced with any other court without leave of this Honourable Court first being applied for and obtained.

3. Any application for leave to institute proceedings or to set down any matter by the Respondent shall be on notice to the Applicant.
4. Respondent shall pay costs of this application."

FACTUAL BACKGROUND

[2] The applicant is Jena Mines (Private) Limited, a company duly incorporated in terms of the laws of Zimbabwe. The respondent is Francis Zambuko, an adult male and a former employee of the applicant.

[3] The respondent was employed by the applicant as a mine manager on a five-year contract, subject to satisfactory performance. The probation period was for three months running from 9 March to 8 June 2020. On 6 June 2020, before the expiry of the probation period, the applicant terminated the contract on two weeks' notice on the ground that the company was not satisfied with the respondent's work.

[4] The respondent was aggrieved by the termination of his employment contract and filed a complaint with the labour officer for unfair dismissal. The labour officer, after hearing the parties, issued a draft ruling finding the respondent to have been unfairly dismissed and ordering his reinstatement or alternatively that the applicant pay damages *in lieu* of reinstatement. The labour officer filed an application with the Labour Court at Gweru under case number LC/MD/LRA/01/2021 for confirmation of the draft ruling. At the hearing, the applicant raised a preliminary point that it was not correctly cited as a legal entity, and the matter was struck off the roll.

[5] Instead of rectifying the fatal defect, the labour officer opted to start the hearing afresh and issued another draft ruling in favour of the respondent. He further filed another application for confirmation of the draft ruling before the Labour Court under case number LC/MD/94/21. The applicant raised some points *in limine* affecting the validity of the application. The matter was struck off the roll, as the application was fatally defective. There is no dispute that the respondent was aware of these proceedings and that he would attend court as a party.

[6] It is also common cause that on 15 December 2021 the matter under case number LC/MD/LRA/01/21 was deemed abandoned in terms of para 5 of the Practice Direction 3 of 2013 by the Registrar. Thereafter, on 11 March 2022, the labour officer filed a notice of withdrawal of the same matter, purporting to withdraw the matter which was no longer pending before the court. There was no further action taken by the labour officer after that date.

[7] On 24 January 2024, the respondent filed a letter with the Registrar seeking the reinstatement of the matter under case number LC/MD/94/21 and the setting down of the matter for hearing. The applicant objected to the respondent's procedure for seeking reinstatement of a matter by letter. On 7 February 2024, the Labour Court struck the matter off the roll. The respondent went on to file an application for condonation for late filing an application for reinstatement in respect of the matter LC/MD/LRA/01/21, a matter already deemed abandoned by the Registrar. That application, filed under case number LC/MD/50/24, was dismissed by the Labour Court on 18 July 2024.

[8] It is also common cause that the respondent further filed an application for condonation for late filing of an application for rescission of the judgment granted under LC/MD/50/24. The application was filed under case number LC/MD/73/24. It was dismissed on 30 September 2024. The respondent did not relent. He proceeded to file an application for leave to appeal against the dismissal of the application under LC/MD/73/24. The application for leave to appeal was registered under case number LC/MD/100/24. It was, however, struck off the roll on 20 November 2024 for being defective.

[9] The respondent went on to file an application for condonation for late filing of an application for leave to appeal after he had failed to rectify the defects in his previous papers within the prescribed period. The application was filed under case number LC/MD/08/25. On 26 February 2025, the Labour Court upheld the point *in limine* raised by the applicant and struck the matter off the roll. The court further gave the full written reasons for its decision.

[10] The respondent filed yet another application for condonation for late filing an application for leave to appeal under case number LC/MD/74/25. The applicant again opposed the application, and on 29 July 2025, the Labour Court dismissed it. In its full judgment, the court lamented the respondent's abuse of court process in filing repetitive applications riddled with similar defects.

[11] He took his case to the Supreme Court. He then filed what was termed a "Chamber Application for condonation for non-compliance with rule 66(2) and for extension of time within which to appeal against the whole decisions of the Labour Court in terms of section 92F(3) of the Labour Act [*Chapter 28:01*] and Supreme Court Rules 66 and 67, SI 47/2025". The application was struck off the roll before CHITAKUNYE JA on 5 December 2025. Not to be undone, the respondent lodged another chamber application for condonation for non-compliance with rule 66(2) and for extension of time within which to appeal against the decisions of the Labour Court under SC 80/26. The application was struck off the roll before CHITAKUNYE JA on 17 February 2026 for being fatally defective.

[12] Given these cases, the applicant averred that the respondent has been abusing the court process by filing frivolous applications in the Labour Court and the Supreme Court, all of which have been fatally defective for one reason or another. In that process, the applicant contended that it has been made to incur unnecessary legal costs that the respondent cannot meet, as he is indigent and, at one point, sought the applicant's consent to sue *in forma pauperis*. The applicant is of the view that a decree of perpetual silence would be appropriate in the circumstances and seeks an order in terms of the draft order as set out above.

[13] The respondent, in his opposing affidavit, raised two points *in limine*: that the matter is sub judice, as it is currently under trial at the Supreme Court, and that the court has no jurisdiction over the matter, as it is a purely labour dispute. These points were not pursued at the hearing. In any case, this matter relates to a cause of action founded on the allegations that the respondent has abused the courts and their processes by filing several frivolous applications and that a decree of perpetual silence is warranted. That cause is

neither *sub judice* nor pending in the Supreme Court or any other court. It is also settled law that this court has jurisdiction to grant a decree of perpetual silence. That relief cannot be obtained in any other court, not even before the Labour Court. The respondent appears to have realised that these points *in limine* were frivolous and unsustainable, and hence elected not to pursue them at the hearing.

[14] On the merits, the respondent contended that the applications he filed failed on technicalities and that they were never dealt with on the merits. He denied that they would justify a decree of perpetual silence being granted him. He further contended that he will not give up the case until it is resolved on the merits. He has to act as a self-actor and cannot afford the services of a legal practitioner. He has tried to use the *pro bono* and contingency routes without success.

[15] The respondent further stated that the five matters have been struck off the roll for different reasons. He also stated that the applicant is cunning and dwells on technicalities, resulting in cases being struck off the roll. It was also his contention that his applications seek to achieve justice and closure. The respondent seeks the dismissal of the application.

[16] The applicant further filed an answering affidavit denying the averments contained in the opposing affidavit. Counsel for the applicant thereafter filed heads of argument in support of the application. In those written submissions, Mr *Zingano* addressed quite extensively the correctness of the decision made by the labour officer, which he stated was incorrect. I hasten to state that this court has no jurisdiction over the parties' employment dispute, a preserve of the Labour Court. At the hearing, the following submissions were made.

APPLICANT'S SUBMISSIONS

[17] Mr *Zingano* submitted that this is an application for a decree of perpetual silence against the respondent, arising from matters from the Labour Court. Counsel stated that he did not wish to regurgitate what is in the papers except to highlight a few issues. The nub of the matter is that the respondent has purported to take over a case which was being moved by the labour officer in LC/MD/LRA/01/21. The matter was struck off the roll on 26 May 2021. It was deemed abandoned for want of prosecution on 15 December 2021.

The labour officer withdrew that matter on 11 March 2022. The applicant in that matter was the labour officer.

[18] Counsel further argued that, in March 2022, the respondent filed an application for reinstatement of the matter. It was now the respondent purporting to take the role of the labour officer whose application had been deemed abandoned and withdrawn. He further submitted that there have been seven other cases filed in the Labour Court and two in the Supreme Court pertaining to the resuscitation of the matter under LC/MD/LRA/01/21. Of these, three matters were dismissed while two were struck off the roll for being nullities. This case calls for a decree of perpetual silence because of the delays he took to act, his engagement in unsustainable litigation, and the wasting of the courts' time and that of the applicant.

[19] Mr *Zingano* referred the court to p 58 of the record, being the judgment of the Labour Court in LC/MD/74/25, in which it was held that the respondent was abusing the court process. The court cited the case of *Selex Es P.A v State Procurement Board & Ors* SC 45/16. It was also argued that the respondent's cases have been unsustainable and that there is no point in the parties continuing on this path. The respondent has vowed to continue with the same path. Counsel submitted that in the papers the applicant has made a case for the grant of a decree of perpetual silence. The order be granted in terms of the draft order at p 75. When the court queried whether it would be justified to bar the respondent from bringing any litigation as sought in the main relief, Mr *Zingano* submitted that he would not persist with the main relief but would seek that the alternative relief be granted.

RESPONDENT'S SUBMISSIONS

[20] The respondent argued that the remedy sought is extreme and drastic. It can only be granted in extreme circumstances involving malicious proceedings. The applicant cites several cases, but he did not initiate them. The first two matters were filed by the labour officer. The other five in the Labour Court and two in the Supreme Court are his cases. The Supreme Court order was to ensure that there are full judgments. The decision was technical. It turned out that the labour officer was the applicant. He took over the case in

terms of s 93(6)(b)(i) and (ii) of the Labour Act. The provisions give any party in any proceedings the right to approach the court. The cases became mandatory to correct the proceedings. His claim is for the draft ruling to be confirmed. He never used the court to abuse.

[21] The respondent further submitted that he believes his case is strong on the merits and that he is pursuing it. There has never been a determination of the merits. When I asked whether he had taken heed of the Supreme Court's advice to obtain assistance from a legal practitioner, he stated that he had already found a lawyer who could assist him in preparing papers and representing him in the Supreme Court matter. He cited the case of *Drum City (Pvt) Ltd* v *Garudzo* SC 57-18 on the point that a labour officer is merely an applicant of convenience; the employee is the true custodian of the draft ruling. He stated that this explains why he had to take over the case as an applicant, and all this was to have the draft ruling confirmed.

[22] It was also argued that in *Midlands State University* v *Matongo* HH 390-18, it was established that where a single claim is pursued to correct a technical issue, there is no abuse. Also, in *Mabwe Minerals (Pvt) Ltd & Ors* v *Valentine & Anor* HH 793-16, the court stated that even a high number of cases, in that case, 30, does not automatically equate to vexatious filings if the litigant genuinely believes he has a genuine claim. He argued that this applies to his case as the claim has not been heard on the merits. The matters have all been struck off the roll on technicalities, and there is no final judgment. In *PTC* v *Mahachi* 1999 (1) ZLR 176 (H), the court established that striking the matter off the roll is a procedural order. It means a party can correct and come back. The matter remains alive. The draft ruling remains valid and must be enforced.

[23] The respondent further contended that the applicant fails to prove actual prejudice. He argued that there is a violation of s 69(3) of the Constitution. A court cannot strip a citizen of their right. The respondent has an unreversed ruling of the labour officer, and if the decree is invoked, he will never be able to recover his terminal benefits. The alternative prayer is still unwarranted. Seeking leave would still restrict his constitutional right to approach the court. There is also a violation of s 85 of the Constitution. The

decree will block him from protecting his interests. The decree would also infringe his rights to enforce the draft ruling, which is enshrined in s 36 of the Labour Amendment Act No. 11 of 2023. This transactional provision deems the draft ruling a final judgment which can be enforceable. The applicant seeks the court to regulate and interfere with the cases before the superior court. He also contended that his constitutional right supersedes the applicant's economic right; hence this application should be dismissed.

APPLICANT'S REPLYING SUBMISSIONS

[24] Mr *Zingano* reiterated that his position remains that the respondent has not filed any valid legal application in any of the eight cases. Counsel argued that the more the respondent argues to continue on this path, the more appropriate the order the applicant prays for in the alternative relief. The cases are not sustainable. No matter how many applications the respondent makes, he can never succeed in taking the position of the labour officer. The current application concerns the respondent's actions in continuing to file these applications. The parties cannot go on repeating the same process. This is why the alternative relief comes in. If there is a matter he can advance, he has to seek leave from the court. Given that two years have passed, the alternative relief is necessary. It merely puts him on terms so that he cannot abuse the court process.

ISSUE FOR DETERMINATION

[25] The sole question the court must determine is whether or not the applicant is entitled to the relief of a decree of perpetual silence against the respondent.

THE LAW

[26] A decree of perpetual silence is a drastic remedy and is, therefore, not lightly granted. It must be shown that the respondent has abused the court process by filing repeated and persistent frivolous or vexatious cases involving the same parties on the same cause of action, and in respect of the same subject matter which merely clog the courts and undermine the system of justice. The conduct must be extreme to leave the court with no option but to stop it, thereby protecting the integrity of the justice system and ensuring that only worthy causes end up before the courts of justice. The position of the law is that

litigation should be final, as endless reopening of cases would clog the courts and undermine legal certainty. In *Crest Breeders International (Pvt) Ltd* v *Chevhu Housing Cooperative Society Ltd & Ors* HH 01-26 at pp 3-4, the court reiterated the same, stating that:

> "The quotation underscores the principle of finality in litigation, a cornerstone of our judicial system. When the courts say that "the law requires that there be finality to litigation", it is affirming the public policy imperative that disputes must, at some stage, come to an end. Endless reopening of cases would undermine legal certainty, clog the courts, and erode confidence in the administration of justice."

[27] A decree of perpetual silence is a remedy meant to prevent repeated and vexatious litigation. The High Court has inherent authority to issue orders prohibiting repetitive, frivolous or vexatious litigation by granting a decree of perpetual silence. In *Crest Breeders International (Pvt) Ltd* (*supra*) at p 4, the court further stated as follows:

> "The law recognises the utility of a decree of perpetual silence to prevent repeated and vexatious litigation. In the South African authorities, including *Brown v Simon* 1905 TS 311 and *Corderoy v Union Government (Minister of Finance)* 1918 AD 512, similarly endorse the principle that courts may issue general orders prohibiting repetition of vexatious litigation. Moreover, the law prevents a person from profiting from their own wrong. In *Matsika v Standard Chartered Bank* 1997 (2) ZLR 389, the Court held that a litigant cannot derive advantage from fraudulent conduct, a principle highly relevant to the respondents' repeated and dishonest litigation." (*my emphasis*)

ANALYSIS AND DETERMINATION

[28] It is recognised that a decree of perpetual silence can be seen as a violation of the right to equal protection and benefit of the law. It can also be seen as a violation of one's right to be heard as well as the right of access to the courts enshrined in terms of s 69(3) of the Constitution. However, the law has recognized that it maybe justified as a necessary measure to prevent abuse of court process, vexatious litigation, or endless litigation of settled matters. Thus, in *Chiutsi* v *Rodgers & Ors* HH 226-23 at p 3, the court made the following pertinent remarks:

> "A decree of perpetual silence, *prima facie* flies in the face of the right to equal protection and benefit of the law and also the right to be heard. These are fundamental rights espoused in the Constitution of Zimbabwe. To that end, I cannot express this more eloquently as was done by MAFUSIRE J in *The City of Harare* v *Masamba,* HH-330-16, as follows:

> 'Courts of justice are open to all. Section 69(3) of the Constitution says that every person has the right of access to the courts, or to some other tribunal or forum established by law, for the resolution of any dispute. But this right is not absolute. In exceptional cases the courts will draw the line. They will shut their doors. They have an inherent right and power to prevent an abuse of their processes. They have inherent powers to protect their integrity. Frivolous, vexatious or burdensome litigation; incessant lawsuits that churn out pesky bills of costs which remain unpaid; dirty hands; abuse of judicial officers in any manner; contempt of court; non-disclosure of material facts, and so on, are some of the intolerable infractions that may lead the courts to shut their doors. The closure may be temporary. But it can be perpetual. It all depends on the circumstances. The doors may not be re-opened without leave. INNES CJ put it this way in *Corderoy* v *Union Government [Minister of Finance]* 1918 AD, at 518
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> 'Where there has been repeated and persistent litigation between the same parties on the same cause of action, and in respect of the same subject matter, a defendant should not be driven to file repeated pleas of *res judicata*, or to make a succession of applications to stay proceedings where prior costs have not been paid. I think he is entitled to more effectual protection against long-continued unsuccessful onslaughts in respect of the same dispute. Such protection could only take the form of a general order curtailing, in some respects the plaintiff's ordinary rights of litigation in that matter'.
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> See also *Western Assurance Co.* v *Caldwell's Trustee* 1918 AD 262, at 273; *Mhini* v *Mapedzamombe* 1999 (1) ZLR 561 (H) and *Nehanda Housing Co-operative Society & Ors* v *Simba Moyo & Ors* HH 987/15, at p 8." (*my emphasis*)

The court must, therefore, seek to balance the constitutional rights of a litigant and the need to protect litigants from abuse of process by other litigants. It can shut the door on a litigant who abuses the court process.

[29] Considering that granting a decree of perpetual silence is a drastic step, it must be proven that the respondent is a serial litigator who has abused the court by filing numerous frivolous or vexatious applications or matters on the same cause of action merely to abuse the court and its process as well as the applicant. *In casu*, the applicant submitted that the respondent has instituted various applications in cases that the courts have already decided. It is imperative to note that the applications that the respondent has brought before the courts have not been dealt with on the merits. The respondent filed a total of seven applications. Of these, five were filed in the Labour Court and two in the Supreme Court. Save for two matters which were dismissed by the Labour Court, the other cases were struck off the roll. Even those dismissed were solely dismissed on account of fatal defects in his papers. Overall, the applications the respondent has been filing have been fatally defective for one reason or the other. Accordingly, the majority of the applications

have been struck off the roll for technical reasons, and none were determined on the merits.

[30] It is common cause that the respondent is a self-actor, and he has been filing these applications as such. In my view, the small number of cases he filed cannot be taken as an indication of a pattern of re-opening of frivolous or vexatious cases to warrant the drastic remedy of perpetual silence. I agree with the respondent that the number of the failed applications is not so huge as to justify the court taking away the respondent's constitutional rights. He cannot be taken as a serial litigator who tends to abuse the court process and his adversary. Thus, MANGOTA J in *Mabwe Minerals (Pvt) Ltd Ors* v *Valentine & Anor* (*supra*) at p 3 held that the decree of perpetual silence is "only granted where a party succeeds in showing the court that the defendant or respondent is a serial litigator who has the tendency to abuse not only the court but also its process and his adversary."

[31] The applications were filed to rectify the defects identified in the prior litigation. Unfortunately, he did it the wrong way. The respondent is entitled to rectify the technicalities to ensure that the merits of the dispute are determined. He has not been able to summon these technicalities. He is a litigant who ought to seek legal guidance to ensure his genuine claim for enforcement of the labour officer's ruling is realised. Before me, the respondent acknowledged that he has now sought legal assistance from a legal practitioner. There is no question of *res judicata*, as the matters have not been determined on the merits. Thus, he is not reopening cases on the same cause of action that have been finally and definitively determined. His claim to seek the enforcement of a ruling by the labour officer cannot be termed frivolous or vexatious on the merits. Rather, the challenges have been recurring technical defects in his applications, which indicate that he lacks proper legal advice and guidance.

[32] The respondent further pointed to the transitional provisions brought into effect by s 36 of the Labour Amendment Act No. 11 of 2023. The said provisions provides as follows:

> "**36 New section inserted in Cap. 28:01**
> The principal Act is amended by the insertion after section 127 of the following and the subsequent section shall accordingly be renumbered.
> "**128 Transitional provisions**

(1) Where a labour officer made a draft ruling in terms of section 93(5)(c) and for what reason, the draft ruling was not registered with the Labour Court in terms of section 93(5a) and (5b) of the replaced provisions, such draft ruling shall automatically be deemed to be a judgement or ruling of the Labour Officer which for execution purposes shall be registered in the appropriate court:
Provided an employer shall have a right of appeal of the Labour Court within 30 days after notice of registration.

(2) The quantum shall be calculated based on the currency in which the judgement was made and payable in Zimbabwean currency at the prevailing official rate." (*my emphasis*)

The above provisions clearly bring a new dimension to the whole dispute between the parties. Its effect is to render the first draft ruling issued by the labour officer, being the valid draft ruling, a final judgment that can be enforced. While the respondent could not take the place of the applicant in a matter already deemed abandoned and therefore no longer before the court, there is nothing that stops him from seeking to enforce the now final judgment of the labour officer in his own right. I am sure that, with the assistance of a legal practitioner, whom he confirmed has now been roped in, the procedural technicalities may be surmounted and the dispute finalised on the merits.

[33] Mr *Zingano,* in his heads of argument, went full throttle arguing on the merits of the draft ruling that it was a wrong decision. That should not be the court's concern, as I cannot determine the merits of their dispute. Whether or not the determination by the labour officer is correct is neither here nor there. It is common cause that such determination exists and its correctness is an issue exclusively within the jurisdiction of the Labour Court to determine. This court has no jurisdiction to pronounce on the correctness of the determination finding that the respondent was unfairly dismissed. Given the transitional provisions of s 128 of the Labour Act, as amended, the dispute can surely take a different turn. That the respondent has filed only seven cases and blundered on technical issues is not sufficient for the court to shut the door on him completely, as prayed for in the main relief. Even the alternative relief that also seeks that he obtain the leave of court to file fresh applications is, in the circumstances, unwarranted. In my view, the applicant rushed into seeking this drastic relief too early. It is not justified in the entire circumstances of the matter before me.

[34] It is trite that in an application of this nature the court must be guided by the circumstances of the parties in every case. The court must not simply adopt an armchair approach or simply ignore the special circumstances of each case. This position was aptly restated in *Mbatha* v *Messenger of Court, Harare; Messenger of Court* v *Mbatha* HH 104-24 at p 14, where MUSITHU J said:

> "The right of litigants to approach the courts for resolution of their disputes can only be taken away or subjected to certain limitations, in limited circumstances. One such exception permitted by the common law is the decree of perpetual silence which is the subject of the present lawsuit. Section 86(1) of the Constitution requires that fundamental rights and freedoms be exercised reasonably with due regard for the rights and freedoms of other persons. Authors *Herbstein & van Winsen* explained the significance of a decree of perpetual silence as follows:
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> > 'After a very full careful consideration of the Roman-Dutch writers a full bench of the Transvaal Supreme Court in *Brown v Simon* came to the conclusion that the remedy of perpetual silence: Recognised as it is by our law, affords a useful means of bringing to a conclusion all threatened actions, and in our opinion it is applicable under due safeguards, not only to cases where a claim has been made or an action threatened publicly, but to every case where by demand or threatened action there has been a disturbance of, or interference with, the quiet enjoyment of another's rights……."
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> The authors go on to state:
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> > 'It was laid down in the case of *Brown v Simon* that the remedy must be applied with great discretion and with due regard to the circumstances of the parties. Its application is a matter for the exercise of a judicial discretion on the part of the court.'" (my emphasis)

[35] The circumstances of the parties in the *Mbatha* case (*supra*) are different from those in this case, given that the matters in that case had been heard on the merits and she was merely recycling the same issues. In the present case, the respondent's cases have not been heard on the merits; they were struck off on technicalities. The court, therefore, cannot grant the relief sought. In light of the provisions of s 128 of the Labour Act as amended by s 36 of The Labour Amendment Act No. 11 of 2023, the respondent, with proper legal guidance, can avoid the legal hurdles faced in the previous application. It is common cause that the Supreme Court has already advised him to seek legal assistance. If he can embrace such advice, it may ensure that the dispute is finalised on the merits. The respondent clearly seeks to assert his right in terms of a decision in his favour. His claim on the merits cannot, therefore, be taken to be frivolous as the Labour Court has not

yet determined the merits of the dispute between the parties or made any findings that the decision of the labour officer was incorrect. I, therefore, endorse the apposite remarks by WAMAMBO J in *Baron* v *Baron & Anor* HH 856-22 at p 4 that:

> "Although I note that the cases between the parties are many, it is not enough to grant the decree sought. It has not been demonstrated that the respondents are serial litigators. It has not been proven that there has been any harassment of applicant or the courts. If anything of the cases filed by respondents, they seek to affirm their rights. After due consideration of all the circumstances of this matter I find that applicant failed to discharge the onus imposed upon him." (*my emphasis*)

[36] *In casu*, the respondent merely seeks to affirm his rights in respect of a decision which upheld his claim for unfair dismissal. It has not been demonstrated that he is a serial litigator. The respondent's applications have been dismissed due to technicalities that arise therein. The number of such cases is also not significant. The cases are also not an attempt to reopen cases determined on the merits, but mainly an attempt to rectify the fatal defects to enable him to affirm his rights under an extant ruling, which by law is now considered a final judgment. The respondent is pursuing a genuine claim founded on an extant final judgment. In *Mabwe Minerals (Pvt) Ltd & Ors* (*supra*), the court dismissed an application for perpetual silence despite there being 30 cases between the parties. In *Midlands State University* (*supra*), the respondent filed 13 cases between the parties, but the court also found that the respondent was pursuing a genuine cause of action and not seeking to vex the other party or to abuse the court and its process.

[37] Further, in my view, the finding by the Labour Court that there was an abuse of court process in one of the cases under LC/MD/74/25 is insufficient for me to resort to the decree to silence the applicant from pursuing a genuine cause of action arising from the termination of his employment. This case does not fall into the exceptional category in which it can be said that the respondent is a serial litigator bent not only on abusing the court and its process but also on abusing the applicant, his adversary. In the circumstances of this case, this application cannot succeed.

DISPOSITION

[38] In light of the foregoing reasons, the applicant has failed to show that a decree of perpetual silence as against the respondent is warranted. The application, therefore, ought

to be dismissed. As regards costs, there is no reason to depart from the general rule that costs should follow the cause.

[39] Accordingly, I make the following order:

The application be and is hereby dismissed with costs.

DEMBURE J: ……

Wilmot & Bennett Legal Practitioners, applicant's legal practitioners